



RESTRICTIVE COVENANTS
TIERRA MONTE ADDITION
BERNALILLO COUNTY, NEW MEXICO

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PART A. PREAMBLE

The undersigned Tierra Monte Architecture Review Committee of Bernalillo County, New Mexico, ("the Committee"), resident homeowners of the Tierra Monte Sub-Division in Bernalillo County, New Mexico, on this *16th day of June*, 2020, hereby makes the following declarations to limitations, restrictions and uses to which the lots and tracts constituting said Subdivision may be put, hereby specifying that said declarations shall constitute covenants to run with all of the land, as under them and for the benefit of and limitations upon all future owners in said Subdivision, this declaration of restrictions being designed for the purpose of keeping said Subdivision desirable, insuring the use of the property for attractive residential purposes, preventing nuisances and impairment of the attractiveness of the property, maintaining the desired tone of the community and fair and adequate property values in said Subdivision, and thereby securing to each site owner the full benefit and enjoyment of his/her home, with no greater restriction upon the free and undisturbed use of his/her site than is necessary to insure the same advantage to the other site owners.

This document voids and supersedes all prior covenants for the Tierra Monte sub-division.

PART B. AREA OF APPLICATION

B-1 Fully Protected Residential Area: The residential area covenants in their entirety shall apply to all lots in said Subdivision.

PART C. RESIDENTIAL AREA COVENANTS

C-1 Land Use and Building Type: No lot shall be used except for residential purposes. No building shall be erected, altered, placed or permitted to remain on any lot other than one

single family dwelling not to exceed two stories in height and one private garage for no more than four cars. A detached structure of no more than 750 square feet, subject to Bernalillo County building regulations and ordinances to match in style and materials with the adjacent main building will be allowed.

C-2 Architectural Control: No building shall be erected, placed or altered on any lot until the construction plans and specifications as well as a plan showing the location of the structure have been approved by the Architecture Review Committee as to quality of workmanship and materials, harmony of external design with existing structures, and as to location with respect to topography and finish grade elevation.

C-3 Dwelling Size: Dwelling should not exceed 4500 square feet, measure no less than 2000 square feet and be no more than two stories. Square footage numbers are exclusive of porches, patios or garages.

C-4 Style of Homes: Homes must be designed to blend into the native surroundings; no western ranch style, cape cod, southern pillar or similar structures will be allowed. Approved structures shall be traditional adobe, modern adobe, adobe style framed stucco and modern styles that complement the surroundings. All dwellings, including garages, must be located in their own lots so that they do not significantly impact the view of their neighbor; each dwelling shall be located on its lot in such a manner that it blends into the surrounding terrain.

C-5 Color of Homes: Colors of structures must be of native, mountain or earth colors. All woods in natural or stained colors are approved. Preferred colors are earth colors.

C-6 Roof Appearances and Outside Equipment: Roof equipment and solar panels should be low profile and unobtrusive. All roof equipment and solar panels placement shall require prior approval by the Committee.

C-7 Fences and Laundry Lines:

- a. Laundry or clotheslines of permanent nature shall be placed hidden from view from the street.
- b. Chain link, unfinished cinder block or cement block fences are not allowed. Railroad ties, cedar poles and rough timbers, adobe and stucco wall are some of the acceptable fencing materials. Fences should not exceed six (6) feet in height except if otherwise required by applicable law.
- c. Fences and enclosures attached to house and enclosing a patio will be allowed so long as the enclosed area is less than six hundred square feet.
- d. Fences for dogs will be allowed up to six (6) feet as long as they are not visible from the street whenever possible and blend into the terrain.
- e. The Committee must approve all new fences.

C- 8 Temporary Structures: Campers, trailers, RVs (recreational vehicles, mobile homes and similar equipment may be parked on the homeowner's property as long as they do not exceed 30 feet in length and best efforts are made to hide from public view; they are subject to the approval of the Architecture Review Committee.

C-9 Easements: Easements for installation and maintenance of utilities and drainage facilities are reserved as shown on the recorded plat.

C-10 Other Buildings: No old or second-hand buildings shall be transported or placed on any lot in the Subdivision. Pre-manufactured storage sheds, metal storage pods and similar structures are not permitted.

C-11 Septic Tanks: Septic tanks and leaching fields will be required for each house in this development. The requirement is to prevent pollution of the community water system. Lots 5, 6, 7, 8, 9, 12, 13, 14 and 15 will be specifically required to have a sewage treating facility that will give a final effluent tertiary treatment quality; an acceptable standard system would be an aeration type with leaching field composed of fine sand filtration and Chlorination additive will be required if necessary to attain such quality and to comply with all applicable laws and regulations.

C-12 Signs: No signs of any kind shall be displayed to the public view on any lot except one professional sign not more than six (6) square feet advertising the property for sale or rent, signs used by a builder to advertise the property during construction and sales period, related to a political campaign and displayed up to four months prior to an election and removed within two (2) weeks thereafter, and "private property" and "do not trespass" signs.

C-13 Oil and Mining Operations: No oil drilling, no fracking, oil development operations, oil refining, quarrying or mining operations of any kind shall be permitted upon or in any lot, nor shall oil wells, tanks, tunnels mineral excavations or shafts be permitted upon or on any lot. No derricks or other structures designed for use in boring for oil or natural gas shall be erected, maintained or permitted on any lot.

C-14 Nuisances: No noxious or offensive activity shall be carried upon any lot, nor shall anything be done thereon which may be or may become any annoyance or nuisance to the neighborhood, including but not limited to loud noises between the hours of 10:00pm and 7:00 am. Garbage and trash may not be left on or around the property. All residents and renters shall abide by all applicable Bernalillo County codes, laws and ordinances governing such nuisances, including but not limited to those related to noise and noxious odors caused or created by humans or permitted animals. Trashcans shall be kept indoors or, if outdoors, in bear-protected enclosures and shall be placed by the

curb on the morning of trash collection days. Home delivered newspapers and packages should be picked up daily. The use of bird feeders during bear season poses a significant risk to both bear and human populations and it is highly discouraged.

C-15 Animals: No animals or livestock of any kind shall be raised, bred or kept on any lot, except for dogs, cats or other pets may be kept, provided they are not kept, bred or maintained for any commercial purpose. Dogs shall not be allowed to roam freely outside of the homeowners' property as per Bernalillo County applicable ordinances or code. Horses may be kept or stabled on each lot; however, such stabling activity shall in no event exceed two (2) horses per lot. Best efforts shall be made to minimize odors and flies. Homeowners must comply with all relevant Bernalillo County ordinances related to permitted animals. No excessive, continuous or persistent animal barking and noxious odors shall be allowed.

C-16 Rentals: Owners and tenants shall abide by all the restrictive covenants. Owners of rental properties shall notify tenants of all applicable restrictions and provide such tenant with a copy of the Restrictive Covenants. Rentals shall be for residential purposes only.

PART D. LANDSCAPING

D-1 Landscaping Style and Lawns: All surrounding land must be left in its native and natural state. Up to 600 square feet of grass yards or lawns or artificial turf will be allowed. Native, drought resistant ground cover or native grasses that can sustain themselves with natural precipitation from rain or snow shall be allowed without restriction. This is a water conservation issue.

D-2 Plant Types: All plantings must be drought resistant, of low water use and preferably native to New Mexico. Only low water use or xeriscape trees and shrubs as described and listed in the Albuquerque Guide "How to Guide to Xeriscaping" available at many city offices, libraries and online at <https://www.ose.state.nm.us?WUC/Albq-brochures/htx-lo-res.pdf> should be planted.

D-3 Watering: All watering of landscaped areas should be kept to a minimum.

D-4 Fire Hazard: Because of fire hazard, trees and shrubs should be planted no less than ten feet from the house or other structures. Firewood should be stored indoors or no less than ten feet from the house and other structures.

E. WATER SYSTEM

E-1 The Tierra Monte Water Users Association: TMWA is owned and operated by Tierra Monte lot owners connected to the water system. Each water user shall be charged monthly for water usage and occasionally for surcharges as needed to maintain the water system infrastructure and to ensure compliance with all state and federal regulations.

E-2 Water System: The water system utilizes well water. Due to the community's unique mountain location, the water system is fragile and depends on each property owner's diligent water conservation efforts. The TMWUA Board of Directors is charged with enforcing reasonable water conservation measures as required to ensure resiliency of the water supply.

E-1 Access: All owners of Tierra Monte plats are required to hook-up to the Tierra Monte water system on commencing construction of dwelling. Drilling water-wells on Tierra Monte sub-division is strictly prohibited.

E-2 Swimming pools and swimming spas are not permitted. Hot tubs are permitted. Any existing pools, spas or water storage tanks that supply a pool or spa may not be connected to or use water from the Tierra Monte water system.

F. APPROVAL OF PLANS AND BUILDING COMPLETION

F-1 Approval of Plans: Two complete sets of architectural plans, with mechanical, electrical, and structural layouts including details and elevations shall be submitted for the approval of the Architecture Review Committee prior to breaking ground. The Committee will review the submitted plans and return, within 30 days, one set with appropriate comments.

In lieu of a complete submittal, the Architecture Review Committee will review the preliminary drawings and make guideline comments to help facilitate the design of the proposed structures.

Approval from the Architecture Review Committee will be valid for one (1) year from the date of issue at which time it must be renewed. Smaller projects may be reviewed in less time.

F-2 Building Completion: Any structure, once commenced, shall be completed as to exterior, in accordance with the provisions of these restrictions in no more than one (1) year from the date of commencement, including but not limited to stucco and similar exterior finishes.

G. ARCHITECTURAL CONTROL

G-1 Membership: The Committee is composed of five (5) members appointed by resident homeowners in Tierra Monte, New Mexico. A majority of the Committee may designate a representative to act on the Committee's behalf. In the event of death or resignation of any member of the Committee, the remaining Committee members shall send an email to all homeowners to solicit volunteers and nominees to fill the vacancy. The remaining Committee members will have full authority to select a successor amongst the nominees. Neither the members of the committee, nor its designated representative shall be entitled to any compensation for services rendered pursuant to this covenant.

G-2 Procedure: The Committee's approval or disapproval as required in these covenants shall be in writing, including electronic correspondence. In the event the Committee, or its designated representative fails to approve or disapprove within 30 days after plans and specifications have been submitted to it, or in any event, if no suit to enjoin the construction has been commenced prior to the completion thereof, approval will not be required and the related covenants shall be deemed to have been fully complied with.

PART H GENERAL PROVISIONS

H-1 Term: These covenants are to run with the land and shall be binding on all parties and all persons claiming under them for a period of twenty-five (25) years from the date these covenants are recorded, after which time said shall be automatically extended for successive periods of ten (10) years unless an instrument signed by the majority of the homeowners and undeveloped lot owners has been recorded, agreeing to change said covenants in whole or in part. This document voids and supersedes all prior covenants for the Tierra Monte sub-division.

H-2 Severability: Invalidity of any of these covenants by judgment or court order shall in no way affect any of the other provisions, which shall remain in full force and effect.

H-3 Enforcement: No delay or omission on the part of the undersigned, its successors or assigns, or any of the Tierra Monte home owners in exercising or enforcing any violation, right, power, or remedy contained herein shall be construed as a waiver, allowance, or acquiescence of said violation, right, power, or remedy. No right to any action legal or otherwise shall be instituted against the undersigned Committee members, their successors, or assigns for any failure or omission to enforce or pursue any violation or breach as provided for herein.

11-4 Non-Compliance: In the event of non-compliance of any provision of these covenants the Architecture Review Committee will notify the non-compliant homeowner in writing. The Committee reserves the right to follow up with a subsequent letter or meeting in an attempt to resolve the issue and avoid litigation. This process may include mediation and binding arbitration. If litigation is necessary and instituted, the prevailing party shall recover their attorney fees and costs from the non-prevailing party.

11-5 Grandfathering: All current homeowners and lot owners shall not be affected with respect to the existing 1982 restrictive covenants and will be grandfathered unless notified of a serious current restrictive covenant violation prior to the recording of the new restrictive covenants. The violation notice will require the fixing of the serious violation in accordance with the covenants. After the recording of the new restrictive covenants, all Tierra Monte homeowners and lot owners will be bound by and subject to the new covenants for all new activities. The grandfathering runs with current homeowners and lot owners land and their subsequent homeowners and lot owners.

Submitted and approved by the members of the Architecture Review Committee:

Robert Goldstein, President
Corina Gutman, Treasurer
Woody Shortt
Debra Hutchins
Samuel "Sandy" Behar

WITNESS MY HAND AND SEAL this day of June 2020 at Albuquerque, Bernalillo County, New Mexico.



Robert Goldstein, President on behalf of the
Tierra Monte Architecture Review Committee

The foregoing instrument was acknowledged before me on this 16 day of June 2020 by Robert Goldstein

My commission expires: 2/24/2024

